



Forest Stewardship Council®



Compilation of Policy and Standards Committee (PSC) decisions on NFSS

FSC-RP- 01-00-2018-PSC Decisions-EN

Last updated in August 2018

NOTE: This is a compilation of decisions made on some specific topics during each PSC meeting and not a comprehensive PSC decision note. For detailed decisions on each standard, PSU will provide specific decision note by country upon request.

Disclaimer:

Status of Document – Non normative document, not to be classified in FSC's normative framework.

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Introduction:

This document is a collection of Policy and Standards Committee's (PSC) decision points on some topics that featured in most National Forest Stewardship Standards (NFSS) submitted to PSC for decision.

These topics were treated in NFSS in ways that did not gain the approval of the PSC. The PSC guided by FSC's normative documents suggested ways to deal with the topics and recorded them in minutes of their different sittings. In addition to what was recorded in PSC minutes, some of the topics and suggested solutions are from notes taken by PSU staff during NFSS sessions of the PSC.

Purpose of the document.

The document will serve the following two purposes;

1. To advise and provide consistency on the topics below during PSC decision making for current and future PSC members during NFSS deliberations.
2. To advise current and future NFSS developers at the beginning and during the process of developing NFSS.

PSU staff in charge of NFSS will keep this document updated. Eventually, it should be considered if some of the suggested solutions are to be written into FSC's normative document for the development and maintenance of FSC Forest Stewardship Standards. These normative documents are reviewed and when needed, revised after every 5years.

How to find topic texts this document:

The different topics in the table below are bookmarked and linked to the section titled, "Content of topics in this document". Navigating from one part of the document to another is therefore easily done by clicking the hyperlinked text to jump to a specific part of the document.

Alternatively, a text find search can be performed using control + F keys

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Issues

Issues	Comments	PSC agreed solutions	Meeting date/PSU notes during PSC meetings
How to deal with Inadequate justification in NFS Back to top	PSC considered in some cases justifications not enough for them to make positive decisions.	Where justification provided is not considered adequate, requirements from the IGI shall be re-inserted in NFSS	Re. PSC meeting July 2016
On numerical balance of SDG Back to top	Most NFSS forwarded to PSC have SDG with numerical imbalance	The PSC suggests that, in future, SDG should strive for numerical chamber balance and that PSU should only approve unbalanced representation under exceptional circumstances and with strong justification.	Re. PSC meeting July 2016
On the status of Notes and Guidance Back to top	NFSS submitted in some cases have considered notes and guidance to be mandatory and in other cases not mandatory.	PSC suggested that SDGs shall ensure that all “notes” that are intended to be mandatory or normative requirements are identified as Indicators or are included in existing indicators. Notes that are guidance shall be identified as Notes. SDGs may include guidance notes in NFSS to help auditors, forest managers or others using the standard to understand it. Such guidance notes or applicability notes may be <u>included as annexes to the standard, or be published as separate documents.</u> In all cases the <u>standard shall state that guidance or applicability notes shall not be normative.</u> In which case, important requirements that answer directly to FSC criterion and are expected to be implemented by the Forest Manager must be developed as indicators.	Re. PSC meeting July 2016

Issues	Comments	PSC agreed solutions	Meeting date/PSU notes during PSC meetings
On the possibility for SDGs to appeal PSC decision. Back to top		The PSC decided that in cases where an SDG wishes to challenge a PSC decision, the SDG must file an Appeal with the PSC Chair. The Chair will immediately establish a subgroup of the PSC to address issues raised and to make a recommendation to the full PSC. Procedures for Appeals and PSC deliberation on appeals will be included in revisions to FSC-PRO-10-606.	Re PSC meeting April 2016
On when to communicate PSC decisions Back to top		PSU communication of PSC decisions to an SDG will occur only after Decision Memos are complete.	Re PSC meeting April 2016
On Lack of consensus within an SDG Back to top		Section 10.3 in STD 60-006, in cases where there is no consensus in an SDG, the SDG shall either • Seek mediation to resolve conflicts through local process, OR • Incorporate the IGI. PSU and PSC will not intervene to resolve differences within an SDG. PSU and PSC expect to receive NFSSs that are submitted with a consensus recommendation from the SDGs.	Re PSC meeting April 2016
On representation in an SDG of government entities Back to top		Representatives of government entities may be voting representatives in the economic chamber if they are representatives of government-owned or controlled forestry business enterprises. Government representatives may be technical experts in any chamber without a vote.	Re PSC meeting April 2016

Issues	Comments	PSC agreed solutions	Meeting date/PSU notes during PSC meetings
On representation in an SDG within the social and environmental chambers Back to top		The representatives of the social and environmental chambers shall be non-governmental representatives. This is the PSC interpretation of the FSC Statutes linked to the eligibility requirements for FSC membership.	Re PSC meeting April 2016
On IGIs that are not workable Back to top		PSC accepts that some IGIs are not workable and can be dropped by an SDG. PSU will present a list of these indicators and the “FAQ on IGIs” that set out the IGIs that are not practical - for example, indicators referring to a “fair living wage” and “accident frequency rates”. The PSC will consider this list in the July meeting.	Re PSC meeting April 2016
On laws in NFSS Back to top	The general practice has been for SDGs to reference laws by stating numbers of sections in law that from their judgement meet the requirements of FSC criteria.	PSC had consensus that assertion that an IGI is “covered by national legislation” is not a justification for dropping. The justification needs to include substantial, evidence-based explanation. When an indicator is adapted, the language of the indicator must be auditable and measurable by an auditor who may not be familiar with national law. The indicator can paraphrase the language of the legislation but should express that law in outcome and result-oriented language. The PSC will not accept an adapted or dropped indicator that simply refers to “compliance with national legislation, or national codes”.	PSU staff note

Issues	Comments	PSC agreed solutions	Meeting date/PSU notes during PSC meetings
On dropping a criterion Back to top	The PSC accepts that a criterion can be dropped from an NFSS if strong and compelling evidence is presented as justification as provided by FSC-STD 60-002 section 3.3.	The dropping of a criterion will be approved by the PSC in a country based on a similar situation in another country. If the SDG has documented the similar situations and the dropping of the criterion has already been accepted by PSU and PSC in that other country. (An example is Criterion 4.8 “intellectual property”. It can be dropped in the neighboring countries in Europe or Scandinavia once justification is established in one country and confirmed as similar situation).	PSU staff note
On inclusion of Principle 3 in a Forest stewardship standard Back to top	Assertions that Principle 3 is not applicable in a country because ethnic minorities are not “Indigenous Peoples” within the FSC definition of “Indigenous Peoples”	Such an assertion must include clear justification that includes consultation with, and information from, representatives of those ethnic minorities, if such representatives exist. Additionally, the SDG shall confirm that the ethnic minorities are not considered forest dependent.	PSU staff note
On dropping an IGI Back to top	Some IGIs have been dropped by SDGs but was not approved by the PSC. The PSC accepts that IGI may be dropped by SDG but an assertion that an IGI is “covered by national legislation” is not a justification for dropping. The justification needs to include substantial, evidence-based explanation.	The only basis for “dropping” an IGI is as provided by the normative framework – i.e. either “not contributing” or “not applicable”. Substantial, evidence-based justification must be provided.	PSU staff note

Issues	Comments	PSC agreed solutions	Meeting date/PSU notes during PSC meetings
On requiring that operations are ceased when there is dispute of substantial magnitude (Criterion 1.6) Back to top	It has been noticed that some SDGs adapted indicators under criterion 1.6 and allowed operations to continue even if there was dispute of substantial magnitude and durations until a court decision is issued over the dispute.	The PSC interprets Criterion 1.6 and related indicators involving disputes of substantial magnitude and duration involving a significant of interests and IGI requirements to cease operations as requiring a precautionary approach. Indicators that refer to awaiting for decisions from a court of justice are not consistent with a precautionary approach and will not be approved in Criterion 1.6.	PSU staff note
On exclusion of national HCV framework in forest stewardship standards (Criterion 9.1 and 9.2) Back to top	Some SDGs excluded HCV from their standards either because they believe requirements of the standards as a whole are good enough to protect HCV if implemented accordingly or because FSC directed the group to wait for HCV framework being developed at the international level	Per FSC-STD-60-004, national standards shall include an HCV framework, which shall be normative. Criteria 9.1 and 9.2 require organizations to develop HCV assessments and management strategies. SDGs needs to develop a national HCV framework for these assessments. Requirements for HCV assessments and management strategies must be in place at the time of certification. They cannot be planned for completion in subsequent years. If SDG do not have time or resources to develop HCV, the framework provided by the HCVRN is to be used in the interim. PSC will not approve standards without national interpretations of HCV.	PSU staff note
On exclusion of indicators on Bribery and corruption Back to top	Requirements on bribery and corruption have been consistently left out of NFSS under the pretext that these have been covered by national laws or	The indicator can paraphrase the language of the legislation but should express that law in outcome and result-oriented language. The PSC will not accept an adapted or dropped indicator that	PSU staff note

	that bribery and corruption is not common practice in a particular country. While this might be true, it does not cancel the fact that FSC requirements are to be audited before a certificate is issued. Leaving out an FSC requirement because it is already covered by the law is challenging for an audit to prove that the requirement was in fact implemented. The approach here is related to where laws are only referenced instead of being written in the body of the standard.	simply refers to “compliance with national legislation, or national codes”.	
On exclusion of FSC Glossary of terms or its national adaptation Back to top	The FSC P&C glossary of terms is part of the P&C standard. With the use of the P&C as part of NFSS, the glossary of terms must also be part of the NFSS. The practice that has been observed is that SDGs copy and paste the glossary of terms but very often forget to check that an FSC term that has been used differently in the body of standard is defined in the glossary, by so doing using terms with ambiguous definitions or terms that are not defined in the glossary.	New terminology that is added to FSC Glossary of terms must be defined. The FSC glossary of terms must be part of NFSS because terms used in the P&C are defined in the glossary of terms On adaptation of FSC terminology, FSC terminology can be adapt if terms/definitions do not fit the national context, but strong justification is needed and the original intent of the FSC term shall remain the same.	PSU staff note

Issues	Comments	PSC agreed solutions	Meeting date/PSU notes during PSC meetings
Use of "shall" Back to top	SDGs are more accustomed to NFSS requirements being written using the "shall" future tense. PSU was asked to write requirements in active voice and advise SDGs to do the same, during the period that the IGI standard was being developed. The rationale for this being that auditors check for conformity of forest management activities with the NFSS requirements at the actual time of audits, not in future. Current FSC procedures and standard related to NFSS development will be updated to align with current practice.	SDG are advised to follow the approach of writing indicators in active voice in the manner that the IGIs are written and avoid the use of "shall" in their NFSS to write an indicator.	PSU staff note
Adaptation to SIR Back to top	NFSS have been submitted with no adaptation to SIR, reason being that the FSC Guide on SIR is still being developed.	With the approval of the SIR Guide, PSU assessments of NFSS now take into account this guide, it is strongly recommended that SDGs take this guide into consideration while developing their NFSS. Information therein would be useful in adapting standards to SIR.	PSU staff note

Issues	Comments	PSC agreed solutions	Meeting date/PSU notes during PSC meetings
Language Back to top	General comments on the correct use of English language. This was observed to be common with countries where English was not used as the SDG work language. While this is not a problem in itself, it has contributed to the slow approval of the final NFSS, because the PSC raised this point as a condition for approving NFSS. SDGs concerned were asked to send NFSS to experts/ or translators with good mastery of the English language to be rewritten in proper English.	This problem would be solved if; 1. SDGs upon comparing their indicators with IGIs adopt the IGIs word for word, when SDG is in consensus that both the IGI and their indicators have the same outcome. 2. If SDG before sending their NFSS for decision, uses the services of persons with good mastery of the English language to write indicators in the NFSS.	PSU staff note
On Exclusion of CITES Back to top	Some SDGs excluded CITES species because the country do not have species classified by CITES	Such an exclusion would require a substantial evidence-based justification to be reviewed by PSU before a decision is made by PSC.	PSU staff note
Reference to terminologies "Engagement" and "Culturally appropriate" Back to top	These terminologies have been consistently left out of NFSS assessed so far. The common rationale being that local communities are not interested in being involved in forest management decisions and activities, notably in European countries. It would seem not to be a common practice in these countries but rather in countries where	If an FSC terminology is not relevant to a particular country, please provide justification for leaving it out. A justification that stating terminology is not relevant is not enough for PSU to determine if this is correct. More explanation would be required for PSU to make a correct judgement. Please contact PSU staff for any assistance you may need on this.	PSU staff note

	the local population depends very much on forest resources for their livelihood. “culturally appropriate” has been left out also because the phrase does not make sense as to what is really the meaning of culturally appropriate in the context of those countries that did not want to include these terminologies. This again was observed more in European NFSS.		
On defining the components of a Conservation Area Network in 6.5 Back to top	Some NFSS were submitted that failed to define components of a CAN.	To ensure that the minimum of 10% Conservation Area Network is not only met through one ecosystem e.g. Riparian zones, there is a need for NFSS to define composition of Conservation Area Network A minimum % for representative sample areas is recommended. In the case of the inclusion of riparian zones, this is encouraged but only where they are established for more than erosion control and proportional to their representation in the overall management unit. E.g. if they are 10% of the MU area, then they can be a maximum of 10% of the of Conservation Area Network Please contact PSU staff for more guidance when developing requirements under 6.5	PSU staff note

Issues	Comments	Solutions	Meeting date/PSU notes during PSC meetings
On inclusion of NTFPs in the scope of NFSS Back to top	In some NFSS assessed, the SDG did not define a scope or if defined, NTFPs are left out of the scope even if some requirements in the body of the standard later make reference to specific NTFPs	If an NFSS specifies NTFP in its scope or later in the body of the NFSS, the SDG is expected to specifically 1. Review the IGI requirements under Criteria 1.3, 1.5, 2.3, 2.5, 5.1, 5.2, 5.4, 6.1, 6.2, 6.3, 7.1, 7.2, 7.3, 8.2, 8.5, 10.7, and 10.11 and consider applicability for the development of Indicators. 2. The laws and regulations regarding the particular NTFP; 3. The NTFP specific training needs, 4. The NTFP related elements of the FM plan and 5. The NTFP specific monitoring needs have to be included.	PSU staff note

Issues	Comments	Solutions	Meeting date/PSU notes during PSC meetings
On exemption from 10% conservation rule 6.5 Back to top	In some NFSS assessed so far the 10% CAN has been left out completely when adapting the NFSS requirements to small operations of up to 500ha.	Criterion 6.5 requires a Conservation Area Network and applies to all size of organizations. The Conservation Area Network requirements can reflect different size and scale of the operation, so that there are different composition requirements for different management units. SLIMF group members are able to collectively achieve Conservation Area Network requirements.	PSU staff note
On the need for endorsement of the written commitment to FSC Policies (IGI 1.8.1) Back to top	In some NFSS, the requirement for endorsement or signature on the written policy (by a person with the authority to implement this policy) that commits the Organization to comply with FSC Principles and Criteria and related Policies and Standards, was missing.	IGI 1.8.1 requires that The Organization has a written policy with a long-term commitment to forest management practices consistent with FSC Principles and Criteria and related Policies and Standards. This policy needs to be endorsed/signed by an individual with authority to implement the policy (usually a senior management staff member). The SDG can replace the phrase “written policy” with the “written statement” or equivalent, but in all cases, such a policy/statement shall be endorsed by a person with respective authority. A written statement without any endorsement or signature by a figure in authority does not provide assurance that the statement will be implemented.	PSC meeting January 2018

Issues	Comments	Solutions	Meeting date/PSU notes during PSC meetings
On discrimination related to sexual orientation (IGI 2.2.9) Back to top	In some NFSS, the mentioning of discrimination related to 'sexual orientation' (IGI 2.2.9) was left out.	Discrimination related to sexual orientation is equally serious as discrimination related to other issues inside IGI 2.2.9 and Criterion 2.2 in general. Consequently, alongside with other types of discrimination, it has to be included as part of an indicator as long as this does not create conflict with national legislation.	PSC meeting January 2018
On the guidance/applicability notes that contain normative language Back to top	Some NFSS contained guidance or applicability notes that clearly included normative elements (e.g. thresholds of performance by The Organization)	The aim of guidance or applicability notes is to help auditors, certificate holders and others understand the requirements of the standard, and not to set such requirements. Consequently, the use of normative language in the guidance/applicability notes (including the use of "shall") is not acceptable.	PSC meeting January 2018
On SDG request to postpone the full implementation of requirements of certain indicators (usually under Criteria 6.5 and 9.1) Back to top	Some SDG requested that certain indicators (e.g. under Criteria 6.4, 6.5 and 9.1) would be allowed to be met (by existing certificate holders) after 3-year period, rather than by the first audit based on the new standard.	Delayed implementation of indicators might be allowed by PSC, but only as unprecedented exceptions to the normal process. This is not meant to set a precedent. Justifications for such exceptions could be: respective requirements are additional to the IGI or involve complex processes for their fulfilment. They shall also add value to a respective standard. In such cases, interim indicators have to be included that would allow monitoring progress	PSC meeting, October 2018

Issues	Comments	Solutions	Meeting date/PSU notes during PSC meetings
		towards fulfilment of respective indicator(s) in due time.	

Issues	Comments	Solutions	Meeting date/PSU notes during PSC meetings
On the use of new IGI 8.5.1 (based on IGI V2-0) Back to top	Some SGDs intended to soften the requirements of the new IGI 8.5.1 related to transaction verification and fibre testing.	Fibre testing is a requirement across the FSC system as described in Advice Note 60-004-01. There is no requirement for the Organization to be the one to collect materials, and they do not need to be sent abroad. IGI 8.5.1 requires full transaction verification information, not simply samples.	PSC meeting, January 2020
On applying Principle 3 to traditional populations Back to top	In one of the standards, the issues related to traditional populations were addressed by the SDG in Principle 3, not Principle 4.	Evidence has to be provided from traditional populations that they self-identify as Indigenous. In that case, traditional populations would be included in the FSC definition of Indigenous Peoples and, consequently, Principle 3 would apply to those traditional populations (without referencing the traditional populations in P3 indicators). Otherwise, traditional populations who do not self-identify as Indigenous shall be included in Principle 4. In addition, Indigenous Peoples need to be aware and supportive of including traditional populations who self identify as Indigenous in P3.	PSC meeting, October 2022
On the use of the term <i>The Organization</i> Back to top	In several draft standards (one example is the FSS for Norway), alternative terms were initially	In such cases, it is requested to replace any alternative term (e.g. “certificate holder”) with “The Organization” throughout a standard,	PSC meetings, May and June 2021

Issues	Comments	Solutions	Meeting date/PSU notes during PSC meetings
	used to refer to a FSC certificate holder.	including annexes. The term “The Organization” is the proper FSC term that is used throughout P&C V5 and the IGI.	
Correct estimation of the CAN area Back to top	In some draft standards, CAN was initially estimated from part of the Management Unit (e.g. productive forest area in case of the FSS for Norway)	IGI 6.5.5 refers to the Management Unit, not a smaller area of the Management Unit. Consequently, % of the CAN area has to be estimated from the total area of the MU.	PSC meetings, May and June 2021
The use of the term <i>Management Unit</i>	In some occasions, alternative terms were used for Management Unit (e.g. “management area” in the FSS for Chile, native forests).	Standard developers shall use the term <i>Management Unit</i> throughout a standard and remove all references to alternative terms.	PSC meetings, May and June 2022